

25STCV25858 25STCV25858

County: los-angeles

Division: Civil Law and Motion

Department: 517

Hearing date: 2026-06-26

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Case Number: 25STCV25858 Hearing Date: June 26, 2026 Dept: 517

These tentative rulings are revised slightly from those that were posted on June 10. The revisions correct typos in the June 10 tentative rulings.

JOINT DEMURRER AND MOTION TO STRIKE OF DEFENDANTS WFC CONSTRUCTION AND WILFREDO FRANCO

Franco demurred to all eight causes of action asserted against him in the Plaintiff's operative First Amended Complaint. The demurrer is sustained with leave to amend as to each of those causes of action. The allegations in the FAC are insufficient to establish that Franco is liable for the actions of the other individual Defendants and for the actions/inactions of WFC Construction.

WFC Construction demurred to the following three causes of action asserted against it in the FAC: fourth cause of action for intentional infliction of emotional distress, the sixth cause of action for failure to prevent discrimination and harassment in the workplace, and the seventh cause of action for constructive termination. The demurrer is sustained with leave to amend as to the fourth cause of action. It is overruled as to the sixth and seventh causes of action.

The joint motion to strike that WFC Construction and Franco filed is denied as moot as to Franco. That is because, through the demurrer ruling, there are no causes of action against Franco remaining: the demurrer was sustained with leave as to every single cause of action against Franco. Thus, there is nothing at this time for Franco to strike. The motion to strike is denied in part and granted in part with leave to amend as to WFC Construction. The motion's objection to the addition through the FAC of Defendants Mario Antonio Garcia and Juan Ramon is misplaced because WFC Construction lacks standing to object to that. That is for those two Defendants to take up. The motion's objection to the prayer for an award of punitive damages and the allegations supporting the prayer is valid. The FAC fails to plead a basis under Civil Code section 3294 on which a jury could award punitive damages against WFC Construction.

DEMURRER AND MOTION TO STRIKE OF DEFENDANT MARIO GARCIA

Defendant Mario Garica, whom Plaintiff alleges was a supervisor of his, has demurred to the following causes of action asserted against him in the FAC: second cause of action for sexual battery; fourth cause of action for intentional infliction of emotional distress; fifth cause of action for sexual harassment in the workplace; sixth cause of action for failure to prevent discrimination and harassment in the workplace; seventh cause of action for constructive termination; and eighth cause of action for negligent hiring, supervision and retention. The demurrer is sustained with leave to amend as to the sixth, and seventh causes of action. It is overruled as to the other causes of action to which Mario Garcia demurred.

Mario Garcia's motion to strike is denied in all respects.

DEMURRER AND MOTION TO STRIKE OF DEFENDANT MARIO ANTONIO GARCIA

The ruling here is the same as to the demurrer and motion to strike of Mario Garica.

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